



## CONSTITUTION OF THE SCHOOL GOVERNING BODY

### LADY GREY ARTS ACADEMY

| Regulatory Alignment & Authority | Details & Specifications                                   |
|----------------------------------|------------------------------------------------------------|
| National Legislative Basis       | South African Schools Act (Act No. 84 of 1996) as amended  |
| Provincial Legislative Basis     | Eastern Cape Schools Education Act (Act No. 1 of 1999)     |
| Institutional Governance Status  | Governing Body of Lady Grey Arts Academy (EMIS: 200600985) |
| Financial Year Lifecycle         | 1 January to 31 December                                   |
| Statutory Submission Window      | Submitted to HOD within 90 days of SGB term / adoption     |

**LEGAL NOTICE & BINDING MANDATE:** This Constitution is the supreme regulatory governance charter of Lady Grey Arts Academy, adopted in terms of Section 18 of the South African Schools Act. All policies, sub-committees, resolutions, and management actions must strictly align with this Constitution.

#### 1. NAME

- 1.1 The name of the governing body is the Governing Body of the Lady Grey Arts Academy.

#### 2. LEGAL STATUS AND GOVERNANCE MANDATE

- 2.1 The Governing Body is a juristic person established in terms of Section 16(1) of the South African Schools Act (Act No. 84 of 1996) as amended.
- 2.2 The governance of the school is vested in the Governing Body, which stands in a position of trust towards the school.
- 2.3 The Governing Body exercises its authority in accordance with national legislation, provincial education policy, and this Constitution.

#### 3. PURPOSE AND OBJECTIVES

- 3.1 The purpose of the Governing Body is to promote the best interests of the school and ensure its development through the provision of quality education for all learners at the school.
- 3.2 To foster a culture of excellence in academic, artistic, and co-curricular pursuits.
- 3.3 To ensure the effective and transparent administration of school funds, assets, property, and grounds.
- 3.4 To maintain constructive partnerships between parents, educators, non-teaching personnel, learners, and the Department of Basic Education.

#### 4. COMPOSITION OF THE GOVERNING BODY

- 4.1 The Governing Body of Lady Grey Arts Academy is constituted in accordance with Section 23 of SASA and comprises:
- Parent members (who must form the majority of voting members).
  - Educator members elected by educators employed at the school.
  - Non-teaching staff member elected by support personnel.
  - Learner representatives from the Representative Council of Learners (RCL) in Grade 8 or higher.
  - The School Principal as an ex-officio member representing the Department of Education.
- 4.2 Co-opted members may be appointed by the Governing Body to assist with specific expertise but do not hold voting rights.

## **5. TERM OF OFFICE**

- 5.1** The term of office of Governing Body members other than learner members is three (3) years.
- 5.2** The term of office of learner members from the RCL is one (1) year.
- 5.3** Office-bearers serve for a period of one (1) year and are eligible for re-election.

## **6. ELECTION OF OFFICE-BEARERS AND HANDOVER**

- 6.1** At the inaugural meeting following triennial elections, the SGB shall elect from among its parent members:
  - A Chairperson.
  - A Treasurer.
- 6.2** The SGB shall elect a Secretary and Vice-Chairperson from among its members.
- 6.3** The Principal and SGB Executive shall ensure full institutional handover, including asset registers, bank mandates, financial statements, and policy portfolios.

## **7. SGB MEETINGS AND NOTICES**

- 7.1** The Governing Body shall meet at least once per school term.
- 7.2** Written notice of ordinary meetings, accompanied by an itemized agenda and relevant draft documentation, shall be distributed to all members at least seven (7) days prior to the meeting.
- 7.3** Special or emergency meetings may be convened by the Chairperson on at least twenty-four (24) hours' notice.

## **8. QUORUM REQUIREMENTS**

- 8.1** A majority of voting members (50% plus one) shall constitute a legal quorum for any meeting of the Governing Body.
- 8.2** If a quorum is not present within thirty (30) minutes of the scheduled time, the meeting stands adjourned to a date determined by the Chairperson.

## **9. VOTING PROCEDURES AND DECISION-MAKING**

- 9.1** Decisions of the Governing Body shall be taken by majority vote of members present and voting.
- 9.2** In the event of an equality of votes, the presiding Chairperson shall have a casting vote in addition to a deliberative vote.
- 9.3** Voting on policy adoptions, budget approvals, and elections shall be conducted by secret ballot unless unanimously agreed otherwise.

## **10. COMMITTEES OF THE GOVERNING BODY**

- 10.1** The Governing Body may establish standing and ad-hoc committees, including:
  - Finance Committee (FinCom) chaired by the SGB Treasurer.
  - Disciplinary Committee for learner and governance compliance hearings.
  - Maintenance and Infrastructure Committee.
- 10.2** Each committee shall operate under written terms of reference approved by the SGB and report quarterly.

## **11. CODE OF CONDUCT AND DISCLOSURE OF INTEREST**

- 11.1** All SGB members shall adhere to the statutory Code of Conduct for School Governing Bodies.
- 11.2** A member must declare any direct or indirect personal or financial interest in any matter before the SGB and recuse themselves from deliberations and voting thereon.

## **12. FINANCIAL GOVERNANCE AND ASSET OVERSIGHT**

- 12.1** The SGB shall administer a School Fund in terms of Section 37 of SASA and open a banking account in the name of the school.
- 12.2** All funds received shall be deposited into the school account and disbursed only in accordance with the annual budget approved by parents at an Annual General Meeting (AGM).
- 12.3** Annual Financial Statements (AFS) shall be audited by a registered auditor and submitted to the Head of Department within six (6) months after the end of each financial year (by 30 June).

### 13. AMENDMENT OF THE CONSTITUTION

- 13.1** This Constitution may be amended by a two-thirds majority vote of the total voting membership of the Governing Body.
- 13.2** Any adopted amendment shall be formally submitted to the Head of Department / District Director within thirty (30) days of adoption.

### ADOPTION AND SIGN-OFF RESOLUTION

This Constitution of the School Governing Body was formally reviewed, accepted, approved, and signed at a duly constituted meeting of the Governing Body of Lady Grey Arts Academy:

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*Signature*

**Mr. K. Dyasi**  
**SGB Chairperson**

Date: 28/01/2026

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*Signature*

**Mr. A. Gushmani**  
**SGB Treasurer**

Date: 28/01/2026

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*Signature*

**Ms. M. Botha**  
**School Principal**

Date: 28/01/2026